

Lori Grubbs

Lori Grubbs
Clerk of the Circuit Court
DeKalb County, Illinois



MOTION

IN THE STATE OF ILLINOIS, CIRCUIT COURT

COUNTY: DeKalb 
County Where You Are Filing the Case

Enter the case information as it appears on your other court documents.

PLAINTIFF/PETITIONER OR IN RE: David C. Byers
Who started the case. *First, Middle, and Last Name, or Business Name*

DEFENDANTS/RESPONDENTS: Pauletta D. Donatello
Who the case was filed against.

First, Middle, and Last Name, or Business Name

25FA152
Case Number

1. MOTION TITLE

Explain in a few words what you are asking the judge to do. This should match the title you write in 1 on the Notice of Court Date for Motion.

Motion to: FOR ORDER RE: VIOLETTE'S MENTAL HEALTH

2. PERSON FILING THE MOTION

Check one box. The Plaintiff/Petitioner is the person who started the case. The Defendant/Respondent is the person or business the case was filed against.

I am filing the Motion. I am the:

☒ Plaintiff/Petitioner ☐ Defendant/Respondent

3. MOTION

Explain what you are asking the judge to do and the reasons why the judge should agree with you.

I am asking the judge to:

1. Background

On 11/1/2023, Violette M. Donatello was seen for a self-harm incident, leading to
medical intervention and a recommendation from her treating physician that she
receive individual therapy.

Pauletta has disclosed (on March 28, 2026) that she does not currently have a
provider for Violette and has "an intake appointment soon" and "hopefully" she'll start.

Petitioner has requested to participate in the choice of therapist, but Pauletta has not
yet involved Petitioner in this process.

(continued on ADD'L PAGES 2, 3, 4)

☒ I need more room to explain, and I have filled out and attached an *Additional Page for Motion* form.

**SIGN**

Under Illinois Supreme Court Rule [137](#), my signature means that:

1) I read the document, 2) I have been informed and believe it is true and correct, and 3) I am not filing it to cause delay or for another bad reason.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/ [Signature] Print Name David C. Byers

☒ **I am completing this form for myself**

Phone Number 8153221013 Email (if you have one) dcbymers13@gmail.com

Your Address 506 N. 1st St. Apt 9 DeKalb IL 60115
Street, Apt. # City State Zip Code

Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.

☐ **I am a lawyer completing this form on behalf of a client** (Client name): _____

Lawyer Name _____ Attorney Number _____

Lawyer Phone Number _____ Law Firm _____

Lawyer Email _____

Address _____
Street, Apt. # City State Zip Code

PROOF (EXPLANATION) OF DELIVERY

*This tells the judge how and when you will send your documents **to the other people in the case** under Rule [11](#). If a person in the case has a lawyer, **you must send your documents to their lawyer**. File this form with the Circuit Clerk, but do not list the Clerk below as a person you are sending your documents to.*

A. I am sending this Proof of Delivery and the following court documents:

MOTION FOR ORDER RE: VIOLETTE'S MENTAL HEALTH CARE & ADD'L PAGES (2, 3, 4)

Name of Documents

To: G.A.L. Evan King - evan@evankinglaw.com

Full Name or Law Firm Name

B. I am sending the documents:

☐ By email to this email address: _____

☒ Through an approved e-filing website (EFSP) to this email address: paulettadonatello@gmail.com



You **must** send documents electronically (by email or through an EFSP) if you and the person you are sending documents to have an email address. If you or the person you are sending to do not have an email address, or if you have permission from the judge, you may send documents using the options below.

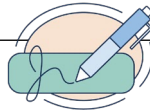
☐ I am sending the documents to this address:

Street, Apt. # City State Zip Code

By (check all that apply):

☐ Personal hand delivery.*You can only deliver to the person, person's family member over 13 at person's residence, person's lawyer, or the lawyer's office.*☐ Mail or third-party carrier (FedEx, UPS, etc.) to the address listed above, with postage or delivery prepaid.

Location of mailbox or third-party carrier: _____

*Address or Intersection**City**State*☐ Mail from a prison or jail: _____*Name and Address of Prison or Jail*C. The documents will be sent on: Date: March 31, 2026*Month, Day, Year*Time: 5PM*Include AM or PM*☐ I am sending the document to more than 1 person and have completed an additional *Proof of Delivery* form.**SIGN**Under [735 ILCS 5/1-109](#), my signature means that:

1) Everything in this document is true and correct, or I have been informed or I believe it to be true and correct, and

2) I understand that making a false statement on this form is perjury and has penalties provided by law.

If you are filling out this form online, sign your name by typing it. If you are filling out this form by hand, sign and print your name.

Signature /s/ [Signature] Print Name David C. Byers☒ I am completing this form for myselfPhone Number 8153221013Email (if you have one) dcbyers13@gmail.comAddress 506 N. 1st St.Apt 9DeKalbIL60115*Street, Apt. #**City**State**Zip Code*Be sure to **check your email every day** so you do not miss important information, court dates, or documents from other parties.☐ I am a lawyer completing this form on behalf of a client (Client name): _____

Lawyer Name _____

Attorney Number _____

Lawyer Phone Number _____

Law Firm _____

Lawyer Email _____

Address _____

*Street, Apt. #**City**State**Zip Code*



ADDITIONAL PAGE FOR MOTION

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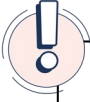
DEFENDANTS/RESPONDENTS: Pauletta D. Donatello

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Use this only if you run out of space in **section 3** on your *Motion* form. This document becomes an additional page of your *Motion* and should be filed with your *Motion*.

Additional explanation continued from my Motion:

1. Background (continued)

Petitioner has indicated that he will not agree to a provider unless they are trauma-informed and meet Violette's therapeutic needs.

The parties' Allocation Judgment (entered August 3, 2022) grants shared decision-making responsibility for Violette's health care, including mental health, and requires mediation for unresolved disputes.

2. Legal Basis

Allocation Judgment, Section 2 (Shared Decision-Making):

"The parties agree that it is in the best interests of their minor child that PAULETTA and DAVID share equal decision-making responsibility for all significant issues affecting the child, including, without limitation, the following: health, including all decisions relating to the medical, dental, and psychological needs of the child and to the treatments arising or resulting from those needs."



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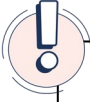
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Additional explanation continued from my Motion:

2. Legal Basis (continued)

they shall seek referrals from credible sources, including but not limited to the child's pediatrician/physician. If the parties still cannot agree, and an impasse is reached, then the parties shall submit the matter to mediation."

Allocation Judgment, Section 27 (Mediation of Disputes):

"If after consultation the parties cannot agree or otherwise reach an impasse concerning any major decision affecting the welfare of the minor child, then the parties shall participate in the mediation process..."

3. Request for Relief

Petitioner respectfully requests that this Court:

Order PAULETTA to immediately involve Petitioner in the process of selecting a trauma-informed therapist for Violette, as required by the Allocation Judgment.

Require both parties to attempt to mutually agree on a trauma-informed provider within 30 days of the entry of this Order.



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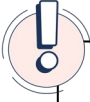
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Additional explanation continued from my Motion:

3. Request for Relief (continued)

If the parties cannot agree on a provider, the matter shall be submitted to mediation as provided for in the Allocation Judgment.

Direct PAULETTA to provide Violette's therapy records to Petitioner within 30 days of each session, as required by the Allocation Judgment.

Enforce the Allocation Judgment's shared decision-making obligation, ensuring both parents cooperate in Violette's mental health care.

4. Conclusion

WHEREFORE, Petitioner respectfully requests that this Court:

Clarify the process for selecting a therapist and require PAULETTA to involve Petitioner in this process.

Order mediation if the parties cannot agree on a provider within the specified timeframe.

Enforce the Allocation Judgment's provisions regarding shared decision-making and access to records.



File this form with your *Motion*.